



CHAPTER lxxx.

An Act to extend the boundaries of the city of Nottingham and county of the same city to authorise the St. Catharine's parochial church council to build upon St. Catharine's Cemetery in the city and for other purposes.

A.D. 1932.

[12th July 1932.]

WHEREAS the existing city of Nottingham and county of the same city (in the preamble to this Act called "the city") is a county borough under the government of the lord mayor aldermen and citizens of the city (hereinafter called "the Corporation") :

And whereas the unrepealed provisions of the local Acts specified in Part I of the schedule to this Act and of the Orders specified in Part II of that schedule are in force in the city :

And whereas the urban districts of Arnold and Beeston and the parishes of Bestwood Park Bilborough Colwick and Wollaton in the rural district of Basford are respectively situate in the administrative county of Nottingham and immediately adjoin the city :

And whereas it is expedient to alter and extend the boundaries of the city so as to include within the city as extended parts of the said urban districts of Arnold and Beeston the said parishes of Bilborough and Wollaton and parts of the said parishes of Bestwood Park and Colwick :

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And whereas it is expedient to alter and extend the boundaries of the parish of Nottingham so as to include therein the said parishes and the said parts of urban districts and parishes :

And whereas the parochial church council of the parish of St. Catharine in the city are desirous of erecting a church hall and other buildings on a disused burial ground in the city formerly forming part of St. Mary's burial ground and later known as St. Catharine's Cemetery :

And whereas certain schools known as St. Paul's Schools were vested in the Right Reverend the Lord Bishop of Lincoln as sole remaining trustee and were formerly situate in the parish of St. Paul in the city but the said parish has been dissolved and the part thereof in which the said schools were situate has been united with the said parish of St. Catharine :

And whereas the said schools have been purchased by the Corporation for the purpose of street improvements and the purchase money in respect of the said schools has been paid to the account of the Accountant General of the Supreme Court of Judicature :

And whereas it is expedient that the said parochial church council should be empowered to erect a church hall and other buildings on the said burial ground known as St. Catharine's Cemetery and that such burial ground and church hall and other buildings when erected thereon should be vested in the Southwell Diocesan Board of Finance as trustees for the said church council and that the balance of the said purchase money after payment of such portion thereof as is in this Act provided to the Board of Education should be paid to the said board of finance and applied by them towards the cost of erecting the said church hall and other buildings to all of which the said bishop as such sole remaining trustee as aforesaid has consented :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Nottingham Corporation Act 1932. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Extension of city boundaries.

Part III.—St. Catharine's Cemetery.

Part IV.—Financial and miscellaneous provisions.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Public Health Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpre-
tation.

(2) In this Act unless the subject or context otherwise requires—

“The city” means—

(a) in Parts I III and IV the city of Nottingham and county of the same city;

(b) in Part II the existing city of Nottingham and county of the same city as extended by this Act;

“The Corporation” means the lord mayor aldermen and citizens of the city acting by the council;

“The council” means the council of the city;

“The lord mayor” “the town clerk” and “the treasurer” mean respectively the lord mayor the town clerk and the treasurer of the city and include respectively any person duly authorised to discharge temporarily the duties of those offices respectively;

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- “The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city;
- “The Arnold district” “the Beeston district” “the Arnold Council” and “the Beeston Council” mean respectively the urban districts of Arnold and Beeston as existing immediately before the appointed day and the urban district councils of those districts respectively;
- “The urban councils” means the councils last mentioned;
- “The Basford district” and “the Basford Council” mean respectively the rural district of Basford and the rural district council of that district;
- “The added part of Arnold” and “the added part of Beeston” mean respectively the parts of the Arnold district and the Beeston district respectively which are respectively included within the inner edge of the red line on the city map;
- “The added part of Bestwood Park” and “the added part of Colwick” mean respectively the parts of the existing parishes of Bestwood Park and Colwick which are respectively included within the inner edge of the red line on the city map and “the excluded part of Bestwood Park” and “the excluded part of Colwick” mean respectively the remaining parts of those parishes respectively;
- “The existing parishes” means the existing parishes of Bilborough and Wollaton in the Basford district;
- “The added areas” means the added parts of Arnold and Beeston the existing parishes and the added parts of Bestwood Park and Colwick;
- “The local Acts” means the local Acts specified in Part I of the schedule to this Act the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders;

“The appointed day” means the first day of A.D. 1932.
April nineteen hundred and thirty-three;

“The city map” means the map marked
“Nottingham Extension City Map” and
signed in triplicate by the Right Honourable
the Earl of Wemyss the Chairman of the
Committee of the House of Lords to which
the Bill for this Act was referred one copy
of which map has been deposited in the
Parliament Office of the House of Lords one
in the Committee and Private Bill Office of
the House of Commons and one with the
town clerk at his office;

“The ward map” means the map marked “Map
“of the wards of the city of Nottingham as
“extended by the Nottingham Corporation Act
“1932” and signed in triplicate by the Right
Honourable the Earl of Wemyss the Chairman
of the Committee of the House of Lords to
which the Bill for this Act was referred one
copy of which map has been deposited in the
Parliament Office of the House of Lords one
in the Committee and Private Bill Office of the
House of Commons and one with the town clerk
at his office;

“Existing” in relation to any area altered by
this Act means existing immediately before
the appointed day;

“The county” means the administrative county of
Nottingham and “the county council” means
the county council of the county;

“The Act of 1888” “the Act of 1894” and “the
Act of 1929” mean respectively the Local
Government Act 1888 the Local Government
Act 1894 and the Local Government Act 1929;

“The Public Health Acts” means the Public
Health Act 1875 and the Acts amending and
extending the same;

“The Municipal Corporations Acts” means the
Municipal Corporations Act 1882 and the Acts
amending and extending the same and the
Borough Councillors (Alteration of Number)
Act 1925;

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“The Rating Act” means the Rating and Valuation Act 1925;

“Provisional Order” includes a Special Order and any Order having the effect of an Act of Parliament;

“The Minister” means the Minister of Health;

“The revenues of the Corporation of the existing city” and “the revenues of the Corporation of the city” mean respectively the revenues of the lord mayor aldermen and citizens of the existing city and of the city respectively from time to time arising from any of their land undertakings or other property for the time being and the rates or contributions leviable by or on the order or precept of the said lord mayor aldermen and citizens respectively.

PART II.

EXTENSION OF CITY BOUNDARIES.

Commencement.

Commence-
ment of
this Part of
Act.

4. Save as otherwise expressly provided this Part of this Act shall come into operation on the appointed day :

Provided that for the purposes of—

(a) all proceedings preliminary or relating to any election to be held in the year nineteen hundred and thirty-three for any area affected by this Part of this Act; and

(b) the preparation of any precept or contribution order to be issued or made on or after the appointed day;

this Part of this Act shall operate from the date of the passing of this Act.

Extension
of city.

5.—(1) The boundary of the existing city the area whereof is included within the outer edge of the green line on the city map shall be altered so as to include in addition to that area the added parts of Arnold and Beeston and so much of the Basford district as comprises the existing parishes and the added parts of Bestwood Park and Colwick.

(2) The boundary of the city shall be that shown by the inner edge of the red line on the city map and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the city and shall be the county borough of Nottingham for the purposes of the Act of 1888 and for all other purposes. A.D. 1932.
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6. The boundary between the county of Nottingham and the county of the city of Nottingham shall be altered so that the added areas shall be included within the county of the city of Nottingham and for the purpose of any commission of assize oyer and terminer or gaol delivery the service of jurors the making of jury lists and sheriff the added areas shall form part of the county of the city of Nottingham. Alteration
of county
boundary.

7. The existing parishes and the added parts of Arnold Beeston Bestwood Park and Colwick shall be added to and form part of the parish of Nottingham. Alteration
of parishes.

8.—(1) Copies of the city map deposited with the town clerk certified by him to be true shall be sent by him as soon as may be after the passing of this Act to the clerk of the county council to the clerks to the Arnold Council the Beeston Council and the Basford Council respectively to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister to the Minister of Transport to the Minister of Agriculture and Fisheries to the Postmaster-General and to the Electricity Commissioners and copies of the ward map so deposited and certified in like manner shall also be sent as soon as may be after the passing of this Act to the Minister to the Secretary of State to the Registrar-General and to the Minister of Agriculture and Fisheries. City and
ward maps.

(2) Copies of or extracts from the city map and the ward map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of such maps respectively so far as they relate respectively to the boundary of any area altered by this Part of this Act or to any ward of the existing city altered by this Part of this Act.

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(3) The city map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the city and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the general rate fund.

Provisions consequent on Extension.

Existing
lord mayor
aldermen
and
councillors.

9. The persons who hold office immediately before the appointed day as lord mayor aldermen and councillors of the existing city shall on the appointed day become the lord mayor aldermen and councillors of the city but shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

Municipal
wards
aldermen
and
councillors.

10. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of the number and boundaries of wards or the number of councillors the following provisions shall have effect:—

- (a) The number of councillors and aldermen of the city shall be unaltered:
- (b) For the purposes of the election of councillors the city shall be divided into sixteen wards:
- (c) The existing wards (other than the Castle Ward the Wollaton Ward the Broxtowe Ward the St. Alban's Ward the Mapperley Ward and the Trent Ward) shall remain unaltered and the councillors representing those wards respectively immediately before the appointed day shall continue to represent the same until they would go out of office in the ordinary course:
- (d) So much of the added areas as comprises the added part of Beeston shall be included in the Castle Ward of the existing city:
- (e) So much of the added areas as comprises the existing parish of Wollaton shall be included in the Wollaton Ward of the existing city:

- (f) So much of the added areas as comprises the existing parish of Bilborough shall be included in the Broxtowe Ward of the existing city : A.D. 1932.
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- (g) So much of the added areas as comprises the added part of Bestwood Park shall be included in the St. Alban's Ward of the existing city :
- (h) So much of the added areas as comprises the added part of Arnold shall be included in the Mapperley Ward of the existing city :
- (i) So much of the added areas as comprises the added part of Colwick shall be included in the Trent Ward of the existing city :
- (j) The councillors representing the Castle Wollaton Broxtowe St. Alban's Mapperley and Trent Wards of the existing city respectively immediately before the appointed day shall be deemed on and after that day to represent those wards respectively as altered by this section until such councillors would go out of office in the ordinary course.

11. For the purposes of the application to the city of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the city.

County and
Borough
Councils
(Qualifica-
tion) Act
1914.

12. Subject to the provisions of section 54 of the Act of 1888 section 50 of the Act of 1929 and section 2 of the Representation of the People Act 1922 the added areas shall be separated from the electoral divisions of the county of which they respectively form part and the councillors of the county who immediately before the appointed day represent the said electoral divisions shall be deemed to have been elected to represent those divisions as altered by this Part of this Act and shall retire on the day on which they would have retired respectively if this Act had not been passed.

County
electoral
divisions
&c.

13.—(1) Subject to the provisions of the section of this Act of which the marginal note is " Jurisdiction of coroner " the powers and duties of the quarter sessions recorder coroner and clerk of the peace of the existing city and of the justices of the peace appointed for the existing city and of the clerk to those justices and of the

Jurisdiction
powers and
duties of
quarter
sessions &c.
extended.

A.D. 1932. — police constables and other peace officers of the existing city shall extend to and apply throughout the city :

Provided that—

- (a) every person committing an offence in any of the added areas prior to the appointed day shall be tried and dealt with as if this Act had not been passed;
- (b) every proceeding which prior to the appointed day has been begun by or is pending before any court of quarter sessions or justice or any coroner in relation to any matter arising in or concerning any of the added areas may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added areas shall cease to form part of any petty sessional division of the county.

Transfer
of lists of
prisoners
&c.

14. Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connection with any action or proceeding pending or existing immediately before the appointed day and appertaining to the added areas shall upon the completion of the pending proceedings be delivered transferred and signed in like manner (as nearly as may be) as is required upon a new sheriff coming into office and as if the sheriff of the city were as respects the added areas the new sheriff in succession to the sheriff of the county.

Juris-
diction of
coroner.

15.—(1) Until the death resignation or removal from office of Herbert Bradwell the present holder of the office of coroner for the Nottingham district of the county (in this section called “the county coroner”) nothing in this Part of this Act shall restrict or affect the powers duties jurisdiction or emoluments of the county coroner and the added areas shall for all purposes of inquest continue to be within that district.

(2) The salary and other emoluments of the county coroner in respect of the whole area within his jurisdiction shall continue to be payable by the county council.

(3) After the appointed day the Corporation shall pay to the county council such contribution towards the salary and other emoluments and superannuation (if any) of the county coroner in respect of his services in the part of his district within the city as may from time to time be determined by agreement between the county council and the Corporation or failing agreement by the Secretary of State to be fairly proportionate to the services required in the part of his district within the city. A.D. 1932.
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(4) All fees allowances and disbursements lawfully paid or made by the county coroner in respect of matters arising in the part of his district within the city and allowed to him by the county council shall be repaid to the county council by the Corporation.

16. The auditors of the existing city who are in office on the appointed day shall continue in office and shall be for the purposes of the Municipal Corporations Acts the city auditors until the next ordinary day of election of city auditors. City
auditors.

17. Subject to the provisions of this Part of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing city (not being property held on any charitable trust) shall by virtue of this Part of this Act be held by the Corporation for the benefit of the city and the Corporation shall hold enjoy and exercise for the benefit of the city all the powers which immediately before that day are exerciseable by or vested in the Corporation for the benefit of the existing city and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing city shall on that day attach to them in respect of the city. Corpora-
tion
property
liabilities
&c.

18.—(1) So much of any sums borrowed by the Corporation or by their predecessors as immediately before the appointed day is owing and charged upon a fund or rate of the existing city or the revenues of the Corporation of the existing city shall be charged upon the corresponding fund or rate of the city or the revenues of the Corporation of the city. Mortgage
debts of
Corpora-
tion.

(2) All borrowed moneys to which this section applies with the interest thereon shall be repaid by the

A.D. 1932. Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Transfer of
public
elementary
schools.

19.—(1) For the purposes and subject to the provisions of the Education Act 1921—

- (a) any public elementary school provided by the county council as local education authority and situate within any of the added areas and the furniture fittings books and apparatus belonging to the county council of any public elementary school so provided within any such area shall by virtue of this Part of this Act be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the county council as the local education authority;
- (b) all contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to the county council as the local education authority in respect exclusively of any public elementary school within the added areas or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school provided as aforesaid within the added areas shall by virtue of this Part of this Act enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority;
- (c) an adjustment shall be made for the purposes of this section under and in accordance with section 68 of the Act of 1894;
- (d) subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school or of the furniture fittings books or apparatus transferred to and vested in the Corporation by virtue of this Part of this Act as is owing immediately before the appointed day and

the liability for the payment of interest on that part of any such loan shall by virtue of this Part of this Act be transferred and attach to the Corporation as the local education authority and so much of any such loan as is then owing shall be charged on the general rate fund and the general rate and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which that part of the loan is otherwise required to be repaid or is made repayable. A.D. 1932.

(2) In this section "public elementary school" includes the site and schoolhouse and also any land acquired and held by the county council as the local education authority for purposes of elementary education.

20. Any manager of any public elementary school within the added areas who was appointed by the county council or by an urban council a rural council or a parish council shall vacate office on the appointed day. School managers.

21.—(1) On the appointed day such members (if any) of the police force of the county as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the standing joint committee of the county and the watch committee of the Corporation or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the city : County police.

Provided that no member of the police force of the county shall be so transferred without his consent.

(2) Every member of the police force of the county so transferred shall hold office in the police force of the city upon the same tenure and subject to the same terms and conditions as the other serving members of the police force of the city of the same rank as that member and any period of service which the transferred member was entitled to reckon before the transfer for purposes of pay promotion or pension in the police force of the county shall be reckoned for the same purpose in the police force of the city :

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Provided that where the scale of ordinary pensions applicable to a member of the police force of the county who is so transferred is by virtue of section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I of the First Schedule to that Act such scale shall continue to apply to him as if he had not been so transferred.

(3) The provisions of subsection (2) of section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of the police force of the county transferred under this section as if that member had removed with the written sanction of the chief constable of the county and notwithstanding that at the date of the transfer that member may not have completed one year's approved service in the police force of the county.

County
police
stations
&c.

22. Any county police station situate within the added areas and any residence for a constable or cell so situate and the fittings and furniture of any such police station residence or cell shall by virtue of this Part of this Act be transferred to and vest in the Corporation as from the appointed day for all the estate and interest therein of the county council and an adjustment shall be made for the purposes of this section under and in accordance with section 68 (Adjustment of property and liabilities) of the Act of 1894.

Continuance
of councils.

23. The Arnold Council the Beeston Council and the Basford Council shall continue and shall be deemed to have been elected for and shall be the respective councils of the Arnold district the Beeston district and the Basford district respectively as diminished respectively by this Part of this Act.

Basford
district
councillors.

24.—(1) The total number of councillors of the Basford district shall be reduced by two.

(2) The persons who immediately before the appointed day are the rural district councillors for the existing parishes shall cease to represent those parishes respectively on the Basford Council.

(3) The persons who immediately before the appointed day are the rural district councillors for the

existing parish of Bestwood Park and the existing parish of Colwick respectively shall continue to represent the parish of Bestwood Park and the parish of Colwick as altered by this Act respectively on the Basford Council until the day or days upon which those persons would have retired from office respectively if this Act had not been passed. A.D. 1932.
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25. If any casual vacancy arises after the fifteenth day of October nineteen hundred and thirty-two in the office of rural district councillor for a rural parish which is wholly included in the city on the appointed day such vacancy shall not be filled. As to
casual
vacancies.

26. The county council the Arnold Council the Beeston Council and the Basford Council shall cease to exercise any powers or discharge any duties within any part of the added areas. Powers of
county and
district
councils.

27. Subject to the provisions of this Part of this Act and to any necessary adjustments— Property
&c. of
district
councils.

- (1) any property or liabilities which immediately before the appointed day are vested in or attach to either of the urban councils or the Basford Council in relation exclusively to any portion of the added areas shall by virtue of this Part of this Act be transferred to and vest in or attach to the Corporation;
- (2) any property or liabilities which immediately before the appointed day are vested in or attach to either of the urban councils or the Basford Council in relation to any portions of the added areas conjointly with any other area shall be a matter for adjustment under this Part of this Act.

28. Subject to the provisions of this Part of this Act— Powers
property
&c. of
parish
councils
ceasing to
exist.

- (1) The parish councils of the existing parishes shall cease to exist:
- (2) Any powers or duties vested in or imposed on the parish councils of the existing parishes shall be vested in or imposed on the Corporation:

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—

- (3) Any property or liabilities held or incurred by either of the said parish councils shall by virtue of this Part of this Act be transferred to and vest in or attach to the Corporation.

Powers
property
&c. of
parish
councils
continued.

29. Subject to the provisions of this Part of this Act—

- (1) The parish councils of the existing parishes of Bestwood Park and Colwick shall cease to exercise any powers or discharge any duties within any part of the added areas :
- (2) As from the appointed day the said parish councils shall be deemed to have been elected as and shall be the parish councils for those parishes respectively as altered by this Part of this Act :
- (3) Any powers and duties of the said parish councils so far as they relate to or affect the added areas shall be vested in the Corporation :
- (4) Any property or liabilities held or incurred by the said parish councils in relation exclusively to the added areas or any portion thereof shall by virtue of this Part of this Act be transferred to vest in or attach to the Corporation :
- (5) Any property or liabilities held or incurred by the said parish councils in relation to the added areas or any portion thereof conjointly with any other area shall be a matter for adjustment under this Part of this Act.

Urban
powers &c.
in excluded
parts of
parishes.

30. All the powers rights duties capacities liabilities and obligations of an urban district council and the powers in relation to the chargeability of expenses with which the Basford Council are invested in pursuance of any order issued by the Local Government Board or the Minister under the Public Health Acts in respect of the existing parishes of Bestwood Park and Colwick shall be deemed to vest in and attach to the Basford Council in respect of the excluded part of either of such parishes in so far as such powers rights duties capacities liabilities and obligations relate to the excluded part of either of such parishes immediately before the appointed day.

31.—(1) Subject to the provisions of this Part of this Act the unrepealed provisions of the local Acts or any other local Act or Provisional Order duly confirmed by Parliament and affecting the existing city or the Corporation as the same respectively are in force within the existing city on the appointed day shall extend and apply to the city and any reference therein to the existing city and the Corporation thereof shall be deemed to refer to the city and the Corporation thereof.

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Local Acts.

(2) The provisions of any protective section for the benefit of the county council the urban councils or the Basford Council (or the predecessors of any such councils) contained in any local Act confirmation Act or Provisional Order (by whomsoever obtained) so far as they relate to or affect any part of the added areas shall enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to such councils (or their predecessors) as the case may be.

32. Notwithstanding anything contained in this Act the provisions of an agreement dated the eighth day of October nineteen hundred and twenty-eight made between the Corporation of the one part and the Trent Motor Traction Company Limited of the other part and referred to in section 13 (4) (d) of the Nottingham Corporation Act 1930 shall be read and construed in respect of any route over which the said Company on the fifth day of May nineteen hundred and thirty-two were operating public service vehicles as though the references in the said agreement to the boundary for the time being of the city were references to the boundary of the city as existing immediately before the passing of this Act.

For pro-
tection of
Trent
Motor
Traction
Company
Limited.

33. Nothing in this Act contained shall extend or be deemed or construed to extend the limits of the Corporation for the supply of electricity or the powers of the Corporation under the Nottingham Electric Lighting Order 1890 and Part VI (Electricity) of the Nottingham Corporation Act 1923 nor shall anything in this Act or in the Derbyshire and Nottinghamshire Electric Power Acts 1901 to 1929 or the Beeston and District Electric Lighting Order 1914 as read with this Act be deemed or construed to prejudice or affect the rights and powers of the Derbyshire and Nottinghamshire Electric Power Company within the city or any part thereof.

For pro-
tection of
Derbyshire
and
Notting-
hamshire
Electric
Power
Company.

A.D. 1932.

Adoptive
Acts.

34.—(1) The provisions of the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1919 the Baths and Washhouses Acts 1846 to 1925 the Infectious Disease (Prevention) Act 1890 the Notification of Births Act 1907 and the Local Government and other Officers' Superannuation Act 1922 in force in the existing city immediately before the appointed day shall be in force in and apply to the city as if the same had been adopted for the city.

(2) The provisions of any adoptive Act other than the Acts mentioned in subsection (1) of this section shall cease to be in force in any part of the added areas.

(3) Any order under the Infectious Disease (Notification) Act 1889 or any adoptive Act mentioned in subsection (1) of this section which is in force at the appointed day throughout the existing city shall extend and apply to the added areas and any such order in force immediately before the appointed day in the added areas shall cease to be in force in those areas.

Orders
under Shop
Hours Act
1904 and
Shops Acts
1912 to
1928.

35. Any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1928 and in force immediately before the appointed day in any area affected by this Part of this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applies immediately before the appointed day.

Orders
under Wild
Birds
Protection
Acts.

36. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force at the appointed day in the existing city shall extend to the added areas and any order under those Acts which is then in force in the county shall cease to extend to the added areas.

Powers
under
section 33
of Act of
1894.

37.—(1) Subject to the provisions of any order which the Minister may hereafter make the provisions of any order heretofore made by the Local Government Board or the Minister and conferring upon the council of the existing city any of the powers relating to the matters mentioned in section 33 of the Act of 1894 and in that order so far as such powers are still in force or still have effect shall be deemed to have effect as if any reference in those provisions to the existing city the council of the existing city and the existing parish of

Nottingham extended and applied to the city the council of the city and the parish of Nottingham as extended by this Part of this Act. A.D. 1932.
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(2) An order may be made by the Minister under section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of any existing urban district or parish affected by this Part of this Act as if this Act had not been passed.

38. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925 :— Orders under Public Health Acts Amendment Act 1907 or Public Health Act 1925.

- (1) The provisions of any order made before the appointed day and declaring to be in force throughout the existing city any parts or sections of either of those Acts shall have effect as if any reference in that order to the existing city extended and applied to the city and as if such parts or sections were accordingly declared to be in force within the city :
- (2) Any other order made under either of those Acts which is in force immediately before the appointed day throughout the existing city shall extend and apply to the added areas :
- (3) The provisions of any order made before the appointed day and declaring to be in force within any part of the added areas any parts or sections of either of those Acts shall cease to apply to any such part and the parts or sections declared by any such order to be in force shall cease to be in force within any such part but this provision shall not prejudice or affect any proceedings which are pending on the appointed day.

39.—(1) All byelaws made under the Public Health Acts and in force within the existing city or within any part of the added areas immediately before the appointed day shall— Byelaws regulations and scales of charges.

- (a) if made before the first day of January nineteen hundred and nineteen continue to apply to the existing city or to such part of the added areas

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—

as the case may be for one year after the appointed day (unless previously repealed or altered by the Corporation) but shall on the expiry of one year cease to be in force within the city;

(b) if made on or after the first day of January nineteen hundred and nineteen continue to apply to the existing city or to such part of the added areas as the case may be until repealed or altered by the Corporation.

(2) Notwithstanding the foregoing provisions of this section any such byelaw in force in the existing city may by a byelaw made in accordance with sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority be continued and be extended with or without modification to the added areas.

o (3) Any byelaws made by the county council under the Advertisements Regulation Acts 1907 and 1925 which immediately before the appointed day are in force within any part of the added areas shall continue to apply to such part of the added areas for a period of three years after the appointed day (unless they are previously repealed or altered by byelaws made by the Corporation) but shall on the expiration of that period of three years cease to be in force within any part of the added areas.

(4) Any byelaws made by the county council under section 11 (Byelaws as to petroleum filling stations) of the Petroleum (Consolidation) Act 1928 which immediately before the appointed day are in force within any part of the added areas shall continue to apply to such part of the added areas unless and until they are repealed or altered by byelaws made by the Corporation.

(5) In their application to the added areas any byelaws continued in force by this section shall have effect as if they had been made by the Corporation and as if the added areas or the part thereof to which such byelaws apply were referred to therein instead of the area to which they originally applied.

(6) All other byelaws made by the Corporation or by the watch committee of the existing city and in

force immediately before the appointed day shall apply to the city until repealed or altered and any such byelaw made by the county council or the standing joint committee of the county or by the councils of the added areas shall on that day cease to apply within the added areas. A.D. 1932.
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(7) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added areas may be taken by the Corporation.

(8) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments and the phrase "byelaws made under the Public Health Acts" means byelaws which under the Ministry of Health Act 1919 are subject to confirmation by the Minister whether made before or after the passing of that Act.

40.—(1) The clerk of the county council shall before the appointed day send to the town clerk a copy of every entry in the register of the county council under the Nursing Homes Registration Act 1927 which relates to any nursing home situate within the added areas and the town clerk shall include in the register of the Corporation under that Act the particulars furnished by the clerk of the county council. Register
of nursing
homes.

(2) Any exemption in force immediately before the appointed day from the operation of the Nursing Homes Registration Act 1927 which may have been granted by the county council in respect of premises within the added areas shall continue in force until the exemption shall expire.

41.—(1) The Minister may by order at any time after the passing of this Act make such provisions as appear to him to be necessary for transferring to the insurance committee for the city such of the property rights and liabilities of the insurance committee for the county as relate to persons resident in the added areas. Insurance
committees.

(2) An order made under this section may authorise the insurance committee for the county to continue to act as insurance committee for the added areas until such date not being later than the thirty-first day of December nineteen hundred and thirty-three as may

A.D. 1932. — be specified in the order and may for that purpose postpone the operation of this Part of this Act so far as it relates to the rights and duties of the insurance committee for the county or the city until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this section may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the respective insurance committees for the county and the existing city shall be deemed to have been appointed or elected as and shall be the members of the respective insurance committees for the county as altered by this Part of this Act and the city.

Officers.

Meaning of
"local
authority"
and
"officer"
in certain
sections of
this Part
of Act.

42. In the sections of this Part of this Act relating to officers unless otherwise provided or unless the context otherwise requires—

"local authority" means a local authority as defined in section 3 of the Local Government and other Officers' Superannuation Act 1922 and includes the standing joint committee of a county;

"officer" includes a servant and any person whose salary or wages is paid by a local authority.

Officers of
Corporation
continued.

43. The town clerk and all other officers of the Corporation of the existing city who hold office immediately before the appointed day shall continue to be the town clerk and officers of the Corporation of the city and shall hold their offices by the same tenure as before that day.

Existing
officers.

44.—(1) All persons who at the date of the passing of this Act are officers employed whole time by the county council the urban councils or the Basford Council exclusively in the added areas shall be transferred to and become officers of the Corporation.

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(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing analogous duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration and be entitled to not less superannuation allowance (if any) than the salary remuneration or superannuation allowance to which he would have been entitled if this Act had not been passed.

(3) Every officer so transferred who on the appointed day holds a post duly designated as established for the purpose of the Local Government and other Officers' Superannuation Act 1922 shall be deemed to have been transferred to a designated post in the service of the Corporation within the meaning of that Act and the provisions of that Act shall apply as if he had been transferred to the service of the Corporation with the consent of the council in whose service he was prior to the appointed day.

(4) The Corporation may distribute the business to be performed by the transferred officers in such manner as the Corporation may think proper and every officer shall perform such duties in relation to that business as may be directed by the Corporation and the Corporation may abolish the office or determine the appointment of any officer subject nevertheless to the consent of the Minister if the officer is removable only with the Minister's consent or by the Minister.

(5) If at any time within five years after the appointed day any transferred officer is required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which he was required to perform immediately before the appointed day the officer may relinquish his office.

45.—(1) Every officer in office on the date of the passing of this Act who by virtue of this Part of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment or by diminution or loss of fees salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being

Compensation to existing officers.

A.D. 1932. — in force) shall be entitled to compensation for that loss from the Corporation.

(2) Any transferred officer who relinquishes his office under subsection (5) of the section of this Act of which the marginal note is "Existing officers" or any officer whose services are dispensed with or whose fees salary or emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this Part of this Act.

Determina-
tion of
compensa-
tion.

46.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Part of this Act regard shall be had subject to the provisions of this Part of this Act to the conditions and circumstances mentioned in the Eighth Schedule to the Act of 1929 and the compensation shall not exceed the limit therein mentioned.

(2) Any compensation payable under this Part of this Act to any officer shall be paid out of the general rate fund and the provisions of the said schedule (except paragraph 11 thereof) shall apply subject to the following and any necessary modifications:—

(a) Any reference in that schedule to the council shall be construed as a reference to the Corporation;

(b) Any reference in that schedule to the appointed day shall be construed as a reference to the appointed day as defined by this Act.

(3) All fees or remuneration received and retained by an officer in connection with the preparation of the jurors' book or the register of electors under the Representation of the People Acts shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purposes of compensation.

Compensa-
tion and
super-
annuation.

47. No officer shall be entitled to receive compensation under this Part of this Act for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

48. The provisions of the sections of this Act of which the marginal notes are respectively "Compensation to existing officers" "Determination of compensation" and "Compensation and superannuation" shall apply to a teacher employed in a public elementary school maintained by the local education authority at the date of the passing of this Act as if he were an officer employed by the authority:

A.D. 1932.

As to
teachers
in public
elementary
schools.

Provided that in the case of a teacher employed in a public elementary school maintained but not provided by the authority the provisions with respect to an officer whose services are dispensed with shall only apply if such teacher be discharged by the authority or by the direction or with the consent of the authority (otherwise than for misconduct).

Supplementary Provisions.

49.—(1) The parish councils of the existing parishes shall liquidate so far as practicable before the appointed day all current debts and liabilities incurred by them.

Liquidation
of current
debts and
liabilities.

(2) If default is made by either of the said councils in complying with the requirement in subsection (1) of this section—

(a) the Corporation may in accordance with subsection (5) of section 2 of the Rating Act make and levy over the area of such portion of the city as is coterminous with the area of the council in default as an additional item of the general rate such amount in the pound as will be sufficient to defray the liability of that area in respect of the current debts and liabilities of the council in default;

(b) any such additional item of the general rate may be made retrospectively to raise money for the payment of charges and expenses incurred by the council in default at any time within one year before the appointed day.

50. For the purposes of all valuation lists of the city under the Rating Act the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from the net annual value of such rateable hereditaments within the added areas as are

Deduction
in ascer-
taining
rateable
value of
tithes
railways &c.

A.D. 1932. — included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall be the same as the amount of the deduction made from the net annual value of similar hereditaments in the existing city and such adjustments of the value of those hereditaments in the added areas shall be made by the Corporation as may be necessary to give effect to the provisions of this section.

Valuation
lists.

51.—(1) The valuation list of the existing city and the portions of the respective valuation lists of the Arnold district the Beeston district and the Basford district which relate to hereditaments within the added areas modified as may be necessary to give effect to the provisions of the preceding section shall together form the valuation list of the city as from the appointed day.

(2) The remaining portions of the respective valuation lists of the Arnold district the Beeston district and the Basford district shall be the valuation lists of those districts respectively as from the appointed day.

Application
of Rating
and Valua-
tion Act
1925.

52. As from the appointed day—

(a) the added areas shall be deemed to form part of the rating area and of the assessment area of the city and shall for such purposes be within the jurisdiction of the court of quarter sessions of the city;

(b) any scheme made under the Rating Act for the constitution of an assessment area which includes any part of the added areas shall be varied by excluding such part from such assessment area and any person who immediately before that day is the representative of any part of the added areas on any assessment committee shall cease to represent the same.

Provision
for adjust-
ments.

53.—(1) Subject to the provisions of this section where in consequence of any alteration of areas or authorities made by this Part of this Act any adjustment of any property income debts liabilities or expenses so far as they are affected by the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with section

62 of the Act of 1888 and that section shall apply to any such adjustment subject to the following modifications :—

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—

- (a) As if in subsections (5) (6) and (7) of the section the expression “ council ” included any authority affected by this Part of this Act or by anything done in pursuance of this Part of this Act ;
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in subsection (6) of the section that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction ;
- (c) As if the fund or rate specified in any agreement or award of adjustment were substituted for any fund mentioned in the section ; and
- (d) As if the following subsection were added to the section :—

“ (8) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part only of a rating area the agreement or award may authorise such rate to be levied in that part as an additional item of the general rate.”

(2) Section 62 of the Act of 1888 as modified by subsection (1) of this section shall extend to any question which may arise in consequence of the extension by this Part of this Act of the existing city as to any financial relations (including the distribution of any moneys) between the Corporation and the county council.

(3) This section shall not extend to any matter for the adjustment of which provision is made in any other Act or in the sections of this Act whereof the marginal notes are respectively “ Transfer of public elementary schools ” “ County police stations &c.” and “ Adjustment for purposes of licensing.”

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Adjust-
ment as to
properties.

54. In any adjustment between the Corporation and any council or other authority which may be made in consequence of this Part of this Act regard shall be had to the interest or share (if any) of the added areas or any part thereof or of any council or authority in any property—

- (a) which is retained by or transferred to such council or other authority after or as from the appointed day who will thereby be relieved from providing accommodation; or
- (b) which was prior to the appointed day subject to beneficial user by the inhabitants of the added areas or any part thereof; or
- (c) which or some part of which is realisable;

and due credit shall be given in such adjustment to the Corporation or any other council or authority in respect of such interest or share (if any) except to the extent to which the property will remain or become a burden on the council or other authority by whom it is retained or to whom it is transferred.

Adjust-
ment for
purposes of
licensing.

55.—(1) An equitable adjustment shall be made between the county and the city respecting the interest of the added areas in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the compensation authorities (as defined by the Licensing (Consolidation) Act 1910) for the county and for the city within twelve months from the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Duplicate
entries in
electors'
lists.

56.—(1) The registration officer of the parliamentary county of Nottingham shall supply the registration officer of the parliamentary borough of Nottingham on publication with a sufficient number of copies of the

electors' lists the lists of objections to the electors' lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the added areas and shall forthwith notify the registration officer of the parliamentary borough of Nottingham of his decisions on any objections or claims in respect of any such registration unit. A.D. 1932.

(2) It shall be the duty of the registration officer of the parliamentary borough of Nottingham to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the city for the purpose of city council elections.

(3) Where the registration officer of the parliamentary borough of Nottingham considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors' lists of any registration unit comprising any part of the added areas he shall forthwith notify the registration officer of the parliamentary county of Nottingham and that officer shall make such correction accordingly.

(4) This section shall apply to the preparation of the register in the year nineteen hundred and thirty-three and of later registers.

57.—(1) For the purposes of the register of local government electors of the city prepared in the year nineteen hundred and thirty-three and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the city as from the twenty-eighth day of February nineteen hundred and thirty-three. Provisions as to register of electors.

(2) If the register of local government electors for any electoral area affected by this Part of this Act is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for an electoral division parish or ward or other voting area—

(a) the town clerk in the case of an election for any voting area within the city; and

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—

(b) the registration officer of the parliamentary county of Nottingham in the case of an election or parish meeting for any voting area outside the city;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election or parish meeting.

(3) The additional expense incurred by the registration officer which may be solely attributable to an alteration or re-arrangement of the register of electors under this section shall be defrayed by the Corporation.

(4) It shall be the duty of any officer designated under article 3 of the Overseers Order 1927 by the Corporation the urban councils or the Basford Council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by the town clerk or the registration officer for the purpose of any alteration or re-arrangement authorised by this section.

(5) Where in the opinion of the Secretary of State the circumstances so require he may make such order as appears to him to be necessary or desirable to give effect to the provisions of this section and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Jury
service.

58. For the purpose of summoning jurors and of jury service any district or parish affected by this Part of this Act shall be deemed to continue unaltered until a new jurors' book comes into force.

Local land
charges
registers.

59.—(1) The local registrars for the county for the Arnold district the Beeston district and the Basford district respectively under the Land Charges Act 1925 and the rules made thereunder shall within one month after the appointed day supply to the local registrar for the city an office copy of every entry in the local land charges register relating to any premises situate within the added areas and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

(2) The local registrar for the city shall within one month after the receipt of the office copy mentioned

in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the city. A.D. 1932.
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(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier day the following provisions shall have effect in respect of all land within the added areas :—

- (a) The local registrar for the city shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the urban or rural district concerned and in the register for the county;
- (b) Where application is made for an official search the local registrar for the city shall issue free of charge a certificate of official search in the register of the city and shall forward to the local registrar for the urban or rural district concerned the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application;
- (c) The local registrar for the urban or rural district concerned and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where an entry of a local land charge which has been duly made in the local land charges register of the county or of the urban or rural district concerned is required by this section to be transferred from the register of such county urban or rural district to the register

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of the city such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the city.

Town
planning.

60. Any proceeding taken by either of the urban councils or the Basford Council under the Town Planning Act 1925 or any enactment thereby repealed (including any agreement order approval consent or notice under that Act or repealed enactment) shall in so far as it relates to land within the added areas have effect as if it had been taken by the Corporation in respect of that land.

Settlement
and
irremov-
ability and
transfer of
liability
for main-
tenance of
poor.

61.—(1) Every person resident in the added areas immediately before the appointed day who has acquired or is in the course of acquiring—

(a) a settlement in the county by reason of residence birth or other qualification therein; or

(b) a status of irremovability from the county by reason of residence therein;

shall be deemed to have acquired or to be in the course of acquiring thereby as the case may require a settlement in or a status of irremovability from the city.

(2) For the purposes of this section consecutive periods of residence in any portions of the county shall (if and so far as those periods would immediately before the appointed day be reckoned for the purposes of determining questions of settlement in or irremovability from the county) be aggregated and shall be reckoned as continuous residence in that part of the county in which the person was residing immediately before the appointed day.

(3) Where immediately before the appointed day a person is in receipt of poor relief from the county council as an inmate of an institution or of rate aid from the county council as an inmate of an institution for persons of unsound mind and was resident in the added areas immediately before he last commenced to receive poor relief or rate aid he shall for the purposes of the foregoing provisions of this section be deemed to be resident in the added areas immediately before the appointed day.

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(4) The liability for the cost accruing on and after the appointed day of the maintenance in any institution of any inmate of that institution to whom subsection (3) of this section applies shall by virtue of this Part of this Act be transferred to and attach to the Corporation but this subsection shall not prevent the Corporation from obtaining an order of removal or an adjudication of the chargeability of any person who notwithstanding the provisions of this section is liable to be removed or made chargeable to any other county or county borough.

(5) Nothing in this section shall authorise the inclusion in any computation of a period of residence for the purposes of this section of such residence as is excluded by subsection (1) of section 93 of the Poor Law Act 1930 from a computation of residence for the purpose of the acquisition of a status of irremovability or shall prevent any residence so excluded from breaking the continuity of residence for the purpose of the acquisition by residence of a settlement.

62.—(1) As soon as practicable after the appointed day the Arnold Council the Beeston Council and the Basford Council shall as regards any cash balances in their hands at the appointed day estimate the proportion thereof derived from contributions paid by any part of the added areas and subject to a deduction on account of undischarged liabilities in respect of such part of the added areas accruing up to the appointed day shall transfer such amount to the Corporation. Apportionment of balances.

(2) Any sum received after the appointed day by any of the said councils under a rate made before that day in respect of any part of the added areas shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sums received shall be subject to review on an adjustment under this Part of this Act.

63.—(1) Notwithstanding the alteration of areas effected by this Part of this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed. Contribution orders precepts and arrears of rates.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the

A.D. 1932. — added areas shall be collected and recovered by the Corporation.

(3) All rates so collected and recovered by the Corporation shall be a matter for adjustment under this Part of this Act.

Audit of
accounts of
dissolved
authorities.

64.—(1) The accounts of the respective parish councils of the existing parishes shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Act had not been passed.

(2) Any sum certified by the district auditor to be due from any person at any such audit shall be paid to the treasurer and shall if necessary be a matter for adjustment.

(3) This section shall apply to the accounts of any committee or officer of any of the authorities mentioned in this section as it applies to the accounts of the authority.

Books and
documents.

65.—(1) All rate books books of account minutes of proceedings deeds papers and writings belonging to either of the parish councils of the existing parishes and all documents directed by law to be kept with the public books writings and papers of those councils except any book or document relating to ecclesiastical matters shall be deposited in such custody as the Corporation may direct.

(2) Any ratepayer of either of the existing parishes shall at all times have the same right of inspection and of making extracts from such books and documents as he would have had if this Act had not been passed.

Schemes
for adminis-
tration of
Registra-
tion Acts.

66. Any scheme made by the Corporation or the Registrar-General under the provisions of section 24 of the Act of 1929 shall make provision for dealing with the added areas but until the date on which a scheme affecting the added areas comes into operation nothing in this Part of this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in the Births and Deaths Registration Acts 1836 to 1929 as to the alteration thereof and the powers of the county council under section 24 of the Act of 1929 in respect of the county as altered by this Part of this Act.

67.—(1) The area of the Corporation as burial board for the existing city shall be altered by the inclusion in such area of the added areas and the Corporation shall have within the city to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 : A.D. 1932.
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Burial
board.

Provided that no approval sanction or authorisation of the vestry of a parish shall be required in respect of any act of the Corporation as the burial board.

(2) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to inhabitants of the burial area of the Corporation as altered by this Part of this Act as such table applies to inhabitants of the existing burial area of the Corporation.

(3) Nothing in this Part of this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day or prejudicially affect any right privilege or authority which immediately prior to the appointed day is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

68.—(1) The Minister on the application not more than six months and not less than three months prior to the appointed day of the local authority of any of the added areas other than the added part of Beeston or of a railway company owning property therein and after considering any representations that may be made to him by the Corporation may order that for the period or periods stated in the order the total amount in the pound of the general rate to be made and levied upon rateable hereditaments situate in the part of the city comprising the added area in respect of which such application may be made shall be less than the total amount in the pound of the general rate to be made and levied upon hereditaments within that part of the city which comprises the area of the city as existing immediately prior to the appointed day by such sum or sums as may seem equitable to him. Differential
rating.

A.D. 1932.

(2) The Corporation and the authority for any assessment area concerned shall use their best endeavours to afford to the Minister all such information as the Minister may require for the consideration of any matter referred to him under this section and the Corporation shall pay to any such authority any expenses reasonably incurred by that authority in affording such information.

(3) For the purposes of this section "the local authority" means the urban district council the rural district council the parish council or (where there is no parish council) the parish meeting having jurisdiction immediately before the appointed day over the added area to which such application relates.

Differential
rating in
added part
of Beeston.

69. The total amount in the pound of the general rate levied by the Corporation in the part of the city comprising the added part of Beeston in respect of any financial year specified in the following table shall be less than the total amount in the pound of the general rate levied by the Corporation within the part of the city which comprises the existing city during the same financial year by the amount shown in the said table as appropriate to that financial year :—

Year ending
the thirty-first of
March.

						s.	d.
1934	...	...	...	...	...	2	0
1935	...	...	...	...	...	1	8
1936	...	...	...	...	...	1	4
1937	...	...	...	...	...	1	0
1938	...	...	...	...	...	0	8
1939	...	...	...	...	...	0	4

Rating of
owners in
added part
of Colwick.

70. Notwithstanding anything contained in the Rating Act for a period of five years from the appointed day the owners of all hereditaments existing at the date of the passing of this Act in the added part of Colwick (other than those situate on the Colwick housing estate of the Corporation) the rateable value of which does not exceed thirteen pounds who are rated instead of the occupiers pursuant to a resolution of the Basford Council under section 11 of the said Act shall continue to be so rated instead of the occupiers and shall continue

to receive the allowance of twelve and a half per centum of the amount payable which they now receive from the said council. A.D. 1932. —

71. Any expenses for the repayment whereof the owner of any premises in the added part of Colwick is on the appointed day liable to the county council under the Private Street Works Act 1892 shall be payable by half-yearly instalments within a period of seven years from the date of the final apportionment of such expenses with interest at the rate of five per centum per annum notwithstanding that any shorter period for payment may have been fixed in any case by the county council. Recovery of private street works expenses from owners in added part of Colwick.

72. Any alderman or councillor who is to continue in office after the appointed day shall not during his term of office current immediately before that day be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Part of this Act. Saving for qualification of aldermen and councillors.

73.—(1) No alteration effected by this Part of this Act shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the county council or either of the urban councils or the Basford Council or any of the parish councils affected by this Part of this Act or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by any of those councils or their predecessors : Savings for actions contracts &c.

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any of those councils in relation exclusively to any part of the added areas may be continued prosecuted and enforced by or against the Corporation; and
- (b) all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any of those councils (or their

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—

predecessors) in relation exclusively to any part of the added areas shall continue in force as fully and effectually as if instead of that council (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Part of this Act.

Other
savings.

74. Nothing in this Part of this Act shall—

- (i) restrict the power of the Secretary of State the Minister the county council or the Corporation under the Act of 1888 the Act of 1894 the Act of 1929 or the Poor Law Act 1930;
- (ii) affect the limits of the parliamentary borough of Nottingham or the parliamentary county of Nottingham or the powers of the Corporation or the county council for the division of their respective parliamentary borough and county into polling districts for parliamentary elections or for the division of the county into polling districts for the election of county councillors or any existing order or scheme for any of those purposes or for naming the polling places at any election;
- (iii) affect the ecclesiastical divisions of any parish or prejudice vary or affect any power right interest or jurisdiction in or over or in connection with any charitable endowment; or
- (iv) affect land tax.

PART III.

ST. CATHARINE'S CEMETERY.

Power to
use St.
Catharine's
Cemetery
for building
and other
purposes.

75.—(1) In this part of this Act "the burial ground" means a piece of land containing three thousand three hundred and ten square yards or thereabouts formerly forming part of St. Mary's burial ground and later known as St. Catharine's Cemetery situate in St. Anns Well Road in the city.

(2) The burial ground shall be vested by this Act in the Southwell Diocesan Board of Finance as trustees for the St. Catharine's parochial church council and their successors in title and shall be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever heretofore attaching thereto which may affect the same by reason of its being a disused burial ground and from all other trusts uses obligations disabilities and restrictions whatsoever heretofore attaching to the burial ground under ecclesiastical law or otherwise as part of the churchyard or enclosure of the church of St. Catharine in the city and notwithstanding anything contained in the Disused Burial Grounds Act 1884 or any other enactment it shall be lawful for the St. Catharine's parochial church council and their successors in title at any time after the passing of this Act to erect or procure the erection of a church hall and other buildings on the burial ground or to sell or otherwise to deal with and dispose of the same for building or for any other purposes in like manner as if no part thereof had ever been used or set apart for the purpose of burial and such church hall and other buildings when erected shall be vested in the said board of finance as trustees for the said parochial church council. A.D. 1932.

(3) The moneys paid on the seventeenth day of February nineteen hundred and twenty-seven to the account of the Accountant-General of the Supreme Court of Judicature in connection with the following matter namely "In the High Court of Justice
" Chancery Division ex parte the mayor aldermen and
" citizens of the city of Nottingham In the matter of
" the Nottingham Corporation Act 1923 the Vendor
" the Right Reverend the Lord Bishop of Lincoln
" being a trustee without power of sale" shall be paid as to three hundred and fifty-two pounds thirteen shillings and one penny to the Board of Education and as to the balance thereof to the Southwell Diocesan Board of Finance as trustees for the said church council and the said balance of the said moneys shall be applied by the said board of finance to the purposes of erecting such church hall and other buildings connected therewith.

A.D. 1932.

Removal
of human
remains
from St.
Catharine's
Cemetery.

76.—(1) The St. Catharine's parochial church council (in this section called "the church council") shall before using any part of the burial ground not at the passing of this Act occupied by buildings for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in the burial ground :

Provided that a Secretary of State on the application of the church council and on being satisfied that such removal is not necessary or desirable may dispense with all or any of the requirements of this section on such conditions (if any) as he thinks fit.

(2) Before proceeding to remove any such remains the church council shall publish a notice for three successive days in two local newspapers circulating in the city to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the burial ground may give notice in writing to the church council of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop of the diocese of Southwell to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the church council that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Southwell who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any

one grave the sum of fifteen pounds) shall be defrayed by the church council such sum to be apportioned if necessary equally according to the number of remains in the grave. A.D. 1932.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the church council in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the church council may without any faculty for that purpose remove the remains of the deceased person and cause them to be re-interred in such other consecrated burial ground or cemetery in which burials may legally take place as the church council think suitable for the purpose subject to the consent of the bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the church council be removed and re-erected at the place of re-interment of such remains or at such place within the city as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the church council and the church council shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

PART IV.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

77.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table Power to borrow.

A.D. 1932. the respective sums mentioned in the second column of that table and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) For the purpose of making any payment to the county council or to any other authority under Part II of this Act or under any enactment the provisions of which are applied thereby (including the payment or purchase in the name of the Corporation of any annuity payable by them under any provision contained in or applicable to the provisions of the said Part of this Act which annuity the Corporation are hereby empowered to purchase).	The sum requisite.	Thirty years from the date or dates of borrowing.
(b) For the purpose of making any payment under the provisions of the section of this Act of which the marginal note is "Compensation to existing officers."	The sum requisite.	Twenty years from the date or dates of borrowing.
(c) For the payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any moneys borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent the moneys are borrowed.

(c) In order to secure the repayment of any moneys borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation of the city.

(3) The respective periods referred to in subsections (1) and (2) of this section shall be the prescribed period for the purposes of this Act and of any enactment incorporated therewith or applied thereby.

78. The following sections of the Nottingham Improvement Act 1897 the Nottingham Corporation Act 1905 the Nottingham Corporation Act 1910 the Nottingham Corporation Act 1913 and the Nottingham Corporation Act 1923 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if those sections with the necessary modifications were set out in this Act (namely):—

A.D. 1932.
 —
 Incorpora-
 tion of
 further
 provisions
 from
 Acts of
 1897 1905
 1910 1913
 and 1923.

The Nottingham Improvement Act 1897—

- Section 26 (Mode of raising money);
- Section 27 (Provisions of Public Health Act as to mortgages to apply);
- Section 29 (Mode of payment off of money borrowed);
- Section 30 (Sinking fund) Provided that the said section shall be read and have effect as if the words “three pounds ten shillings per centum per annum or such other rate as the Minister of Health may approve” were inserted in subsection (1) (b) of that section instead of the words “three pounds per centum per annum”;
- Section 31 (Protection of lender from inquiry);
- Section 32 (Corporation not to regard trusts);
- Section 33 (Appointment of receiver);
- Section 36 (Application of money borrowed); and
- Section 37 (Inquiries by Local Government Board) Provided that the said section 37 shall be read and have effect as if the word “five” were substituted for the word “three” in subsection (2) of that section.

The Nottingham Corporation Act 1905—

- Section 46 (Expenses of execution of Act);
- Section 62 (Recovery of penalties); and
- Section 64 (Audit of accounts).

The Nottingham Corporation Act 1910—

- Section 26 (Application of section 265 of Public Health Act 1875).

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The Nottingham Corporation Act 1913—

Section 27 (Judges not disqualified); and

Section 29 (Powers of Act cumulative).

The Nottingham Corporation Act 1923—

Section 131 (Recovery of demands);

Section 132 (Informations by whom to be laid);

Section 133 (Saving for indictments &c.); and

Section 137 (Compensation how to be determined).

Costs of
Act.

79. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under the authority of this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

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PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
23 Geo. III c. 48. - -	An Act for improving the Navigation of the river Trent.
8 & 9 Vict. c. vii. - -	An Act for inclosing lands in the parish of Saint Mary in the town and county of the town of Nottingham.
8 & 9 Vict. c. xix. - -	The Nottingham Waterworks Act 1845.
16 Vict. c. xi. - - -	The Nottingham Gas Act 1853.
17 Vict. c. x. - - -	The Nottingham Waterworks Amendment Act 1854.
21 Vict. c. ix. - - -	The Nottingham Gas Amendment Act 1858.
21 & 22 Vict. c. xxxiv. -	Trent Navigation Act 1858.
26 Vict. c. xli. - - -	The Nottingham Gas Amendment Act 1863.
27 & 28 Vict. c. cix. -	The Nottingham Gas Act 1864.
30 Vict. c. x. - - -	The Nottingham Improvement Act 1867.
35 & 36 Vict. c. cv. - -	The Nottingham and Leen District Sewerage Act 1872.
36 & 37 Vict. c. ccv. - -	The Nottingham Gas Act 1873.
37 & 38 Vict. c. cxxxvi. -	The Nottingham Corporation (Gas) Act 1874.
37 & 38 Vict. c. cxxxvii. -	The Nottingham Waterworks Act 1874.
37 & 38 Vict. c. exciv. -	Nottingham Improvement Act 1874.
40 Vict. c. xxxi. - - -	Nottingham Borough Extension Act 1877.
41 Vict. c. xlv. - - -	Nottingham Waterworks Act 1878.
41 Vict. c. xci. - - -	Nottingham Improvement Act 1878.
42 Vict. c. xi. - - -	Nottingham Waterworks Act 1879.
42 & 43 Vict. c. cciv. -	Nottingham Improvement Act 1879.

A.D. 1932.	Session and Chapter.	Title or Short Title.
	43 & 44 Vict. c. ccviii.	- Nottingham Corporation Loans Act 1880.
	45 & 46 Vict. c. ccxvii.	- Nottingham Corporation Act 1882.
	46 & 47 Vict. c. lxxviii.	- Nottingham Corporation Act 1883.
	47 Vict. c. xxxviii.	- Trent Navigation Act 1884.
	50 & 51 Vict. c. cxv.	- Trent (Burton-upon-Trent and Humber) Navigation Act 1887.
	55 & 56 Vict. c. cxxxv.	- Trent Navigation Act 1892.
	57 & 58 Vict. c. clxxviii.	- Nottingham Corporation Act 1894.
	60 & 61 Vict. c. cc.	- Nottingham Corporation Water Act 1897.
	60 & 61 Vict. c. ccxxxviii.	- Nottingham Improvement Act 1897.
	61 & 62 Vict. c. lxxi.	- Nottingham Corporation Act 1898.
	62 & 63 Vict. c. ci.	- Nottingham Corporation Act 1899.
	62 & 63 Vict. c. cclxix.	- The Derwent Valley Water Act 1899.
	63 & 64 Vict. c. cxxxii.	- Nottingham Corporation Act 1900.
	2 Edw. 7. c. ccxxxiii.	- Nottingham Corporation Act 1902.
	3 Edw. 7. c. ccii.	- Nottinghamshire and Derbyshire Tramways Act 1903.
	5 Edw. 7. c. clxxv.	- Nottingham Corporation Act 1905.
	6 Edw. 7. c. lvii.	- Trent Navigation Act 1906.
	6 Edw. 7. c. lx.	- Nottinghamshire and Derbyshire Tramways Act 1906.
	8 Edw. 7. c. ci.	- Nottinghamshire and Derbyshire Tramways Act 1908.
	10 Edw. 7. & 1 Geo. 5. c. xlv.	- Nottingham Corporation Act 1910.
	1 & 2 Geo. 5. c. lxxxviii.	- Nottinghamshire and Derbyshire Tramways Act 1911.
	3 & 4 Geo. 5. c. cxiii.	- Nottingham Corporation Act 1913.
	5 & 6 Geo. 5. c. lxvi.	- Nottingham Corporation (Trent Navigation Transfer) Act 1915.
	10 & 11 Geo. 5. c. lxvi.	- Nottingham Corporation Act 1920.
	10 & 11 Geo. 5. c. clxv.	- The Derwent Valley Water Act 1920.
	12 & 13 Geo. 5. c. xv.	- Nottingham Corporation (Trent Navigation) Act 1922.
	13 & 14 Geo. 5. c. c.	- Nottingham Corporation Act 1923.
	15 & 16 Geo. 5. c. cix.	- Nottingham Corporation Act 1925.
	19 & 20 Geo. 5. c. lxi.	- Nottingham Corporation Act 1929.
	20 & 21 Geo. 5. c. cxiv.	- Nottingham Corporation Act 1930.

PART II.—ORDERS.

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Session and Chapter.	Short Title of Confirmation Act.	Order thereby confirmed.
39 Vict. c. xvi.	The Local Government Board's Provisional Orders Confirmation (Briton Ferry &c.) Act 1876.	Two Provisional Orders to enable the urban sanitary authority for the borough of Nottingham to put in force the compulsory clauses of the Lands Clauses Consolidation Acts 1845 1860 and 1869.
39 & 40 Vict. c. cxcviii.	Local Government Board's Provisional Orders Confirmation (Bingley &c.) Act 1876.	Provisional Order for altering a local Act.
39 & 40 Vict. c. ccxxxv.	Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.	Provisional Order for confirming an improvement scheme under the Artizans and Labourers Dwellings Improvement Act 1875.
40 & 41 Vict. c. lxxvii.	The Local Government Board's Provisional Orders Confirmation (Altrincham &c.) Act 1877.	Provisional Order to enable the urban sanitary authority for the borough of Nottingham to put in force the compulsory clauses of the Lands Clauses Consolidation Acts 1845 1860 and 1869.
40 & 41 Vict. c. cxxiv.	The Tramways Orders Confirmation Act 1877.	The Nottingham and District Tramways Order 1877.
44 & 45 Vict. c. cii.	Local Government Board's Provisional Orders Confirmation (Birmingham Tame and Rea &c.) Act 1881.	Provisional Order to enable the urban sanitary authority for the borough of Nottingham to put in force the compulsory clauses of the Lands Clauses Consolidation Acts 1845 1860 and 1869.

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Session and Chapter.	Short Title of Confirmation Act.	Order thereby confirmed.
45 & 46 Vict. c. lix.	Local Government Board's Provisional Order Confirmation (Artizans and Labourers Dwellings) Act 1882.	The Nottingham Improvement Scheme 1881.
45 & 46 Vict. c. lxii.	Local Government Board's Provisional Orders Confirmation (No. 4) Act 1882.	Provisional Order to enable the urban sanitary authority for the borough of Nottingham to put in force the compulsory clauses of the Lands Clauses Consolidation Acts 1845 1860 and 1869.
47 & 48 Vict. c. cxii.	Tramways Orders Confirmation (No. 1) Act 1884.	The Nottingham Tramways Order 1884.
47 & 48 Vict. c. cexiv.	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1884.	Provisional Order for altering and amending certain local Acts and a confirming Act.
50 & 51 Vict. c. xcix.	Local Government Board's Provisional Orders Confirmation (No. 3) Act 1887.	Provisional Order to enable the urban sanitary authority for the borough of Nottingham to put in force the compulsory clauses of the Lands Clauses Consolidation Acts.
52 & 53 Vict. c. cxiii.	Local Government Board's Provisional Orders Confirmation (No. 11) Act 1889.	Provisional Order for altering the Nottingham Improvement Act 1878.
53 & 54 Vict. c. cxi.	Electric Lighting Orders Confirmation (No. 6) Act 1890.	Nottingham Electric Lighting Order 1890.
55 & 56 Vict. c. lxxviii.	Local Government Board's Provisional Orders Confirmation Act 1892.	Provisional Order for altering the Nottingham Corporation Act 1882.
55 & 56 Vict. c. ccxxiii.	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892.	Nottingham Order 1892.

[22 & 23 GEO. 5.] *Nottingham*
Corporation Act, 1932.

[Ch. lxxx.]

A.D. 1932.

Session and Chapter.	Short Title of Confirmation Act.	Order thereby confirmed.
57 Vict. c. xxi.	Local Government Board's Provisional Orders Confirmation (No. 3) Act 1894.	Nottingham Order 1894.
59 & 60 Vict. c. clxxi.	Local Government Board's Provisional Order Confirmation (No. 22) Act 1896.	Nottingham Order 1896.
61 & 62 Vict. c. lxxxi.	Local Government Board's Provisional Orders Confirmation (No. 8) Act 1898.	Nottingham Order 1898.
14 & 15 Geo. 5. c. lxxiii.	Ministry of Health Provisional Orders Confirmation (No. 7) Act 1924.	Derwent Valley Water Order 1924.
21 & 22 Geo. 5. c. lxxvii.	Public Works Facilities Scheme (Nottingham Corporation) Confirmation Act 1931.	Nottingham Corporation (Waterworks) Scheme 1931.

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